

DJ SERVICES CONTRACT

This agreement is entered into between the parties listed below.

1. PARTIES TO THIS AGREEMENT

DJ / Service Provider: Noah Smith (DJ Cheesy Potato)

Client Name: _____

Client Phone / Email: _____

2. EVENT DETAILS

Event Type: _____

Event Date: _____

Event Start Time: _____

Event End Time: _____

Venue Name & Address: _____

Requested add-on packages: _____

Agreed Rate: \$_____

3. MUSIC SELECTION & CREATIVE DIRECTION

The Client acknowledges and agrees to the following terms regarding music selection:

3.1 Must-Play Songs

The Client may submit up to ten (10) must-play songs prior to the event. These songs are not guaranteed to be played in any specific order, but the DJ will make reasonable efforts to include all submitted tracks during the performance. Songs on the must-play list must be submitted two (2) weeks before the event.

3.2 Do-Not-Play Songs

The Client may also submit a do-not-play list of up to five (5) songs. The DJ will make every reasonable effort to honor these requests. Songs on the do-not-play list must be submitted in writing no later than 48 hours before the event.

3.3 Creative Discretion

Beyond the must-play and do-not-play lists, the client may request a genre and/or mood, however all music selection, programming, mixing, sequencing, and overall creative direction of the performance is left entirely to the professional judgment of the DJ. This includes, but is not limited to:

- Song selection and ordering
- Genre and tempo transitions
- Reading and responding to the crowd and energy of the event
- Mixing style and technique

The Client agrees not to interrupt the DJ during the performance to make additional song requests beyond what was submitted in advance, as this can disrupt the flow and quality of the set.

3.4 Song requests from Guests

□ The Client opts to allow guests to make song requests during the event. The DJ will consider all requests but retains full creative discretion over whether any requested song is played, and this does not supersede the terms of Section 3.3.

4. EQUIPMENT

The DJ will provide professional audio equipment suitable for the event. However:

- The specific brand, model, type, and configuration of speakers, subwoofers, amplifiers, mixers, and any other equipment is not guaranteed and is at the sole discretion of the DJ.
- The DJ reserves the right to substitute any piece of equipment with equivalent or superior alternatives as needed.
- The Client is responsible for ensuring the venue provides adequate power supply (standard electrical outlets unless otherwise arranged in writing).
- The DJ reserves the right to perform acoustic calibration and system tuning as deemed necessary to ensure optimal audio performance. This includes but is not limited to the use of measurement tones, pink noise, frequency sweeps, and any associated software or hardware tools.
- The DJ is not responsible for sound quality issues caused by the venue's acoustics, layout, or pre-existing electrical issues.

5. PERFORMANCE TERMS

- The DJ will arrive up to Two (2) hours before the scheduled start time for setup, unless otherwise agreed in writing.
- Setup time may include professional acoustic calibration of the audio system, which can involve the use of test tones, pink noise, frequency sweeps, or measurement software. When performed, this process is a standard part of professional audio setup and ensures optimal sound quality for the event. The Client agrees not to interrupt or rush this process.
- Performance time begins at the agreed start time listed above and ends at the agreed end time.
- Any extension of performance time beyond the agreed end time will be subject to an additional fee, negotiated on-site, with the exception of finishing the current song at the time that the end time is reached.
- In the event of technical failure caused by equipment malfunction, the DJ will make every reasonable effort to restore service promptly.

6. CLIENT RESPONSIBILITIES

- The Client is responsible for obtaining any required permits, licenses, or permissions from the venue for amplified music.
- The Client must inform the DJ of any venue restrictions (volume limits, noise curfews, photosensitivity, etc.) prior to the event.
- The Client is responsible for ensuring a safe working environment for the DJ and their equipment.
- Any damage to the DJ's equipment caused by guests or venue staff will be the financial responsibility of the Client.

7. CANCELLATION

Either party may cancel this agreement by providing written notice as soon as possible. In the event of cancellation:

- Cancellation by the Client with less than 7 days' notice may result in a cancellation fee equal to 50% of the agreed rate.
- In the event the DJ must cancel due to emergency or illness, the DJ will provide as much notice as possible and will make reasonable efforts to assist the Client in finding alternative entertainment, though no specific substitute is guaranteed.

8. LIMITATION OF LIABILITY

The DJ's liability under this agreement is limited to the total amount paid by the Client under this contract. The DJ is not liable for any indirect, incidental, or consequential damages, including but not limited to dissatisfaction with music selection beyond the terms outlined in Section 3.

9. GENERAL TERMS

- This contract constitutes the entire agreement between both parties.
- Any modifications to this agreement must be made in writing and signed by both parties.
- This agreement is governed by the laws of the state/territory in which the event takes place.

10. SIGNATURES

By signing below, both parties confirm they have read, understood, and agree to the terms of this contract.



Noah Smith

DJ / Service Provider Signature

Client Signature & Date

Client Printed Name